

25STCV37058 25STCV37058

County: los-angeles

Division: Civil Law and Motion

Department: 11

Hearing date: 2026-08-19

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Case Number: 25STCV37058 Hearing Date: August 19, 2026 Dept: 11

Meraz (25STCV37058)

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Tentative

Ruling Re: Motion to Compel Arbitration

Date: 8/19/26

Time: 11:00 am

Moving Party: Exact Staff,
Inc. ("Exact Staff")

Joinder: Albatross
America, Inc. ("Albatross")

Opposing Party: Rogelio Meraz ("Plaintiff")

Department: 11

Judge: Bruce G.
Iwasaki

TENTATIVE RULING

The hearing on Exact Staff's motion to compel arbitration is continued. The Court grants Plaintiff leave to file a supplemental declaration to respond to Mr. Smith's declaration regarding the onboarding process and formation of the arbitration agreement, as well as details about his job duties. At the hearing the parties will discuss a briefing schedule and continued hearing.

BACKGROUND

This is a putative class action. Exact Staff is a staffing agency. Albatross is one of Exact Staff's clients. Exact Staff placed Plaintiff to work as a sorter in the packaging department at Albatross's warehouse. Plaintiff alleges that Exact Staff and Albatross jointly employed him and that they subjected him and other current and former non-exempt employees to numerous wage-and-hour violations.

Here, Exact Staff and Albatross move to compel arbitration pursuant to Exact Staff's arbitration agreement.

Defendants' objections to Meraz declaration

Defendants' objections are overruled in their entirety.

DISCUSSION

Existence and Consent

"[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and . . . whether it is enforceable." (Rosenthal v. Great Western Financial Securities Corp. (1996) 14 Cal.4th 394, 413.) "[T]he threshold question . . . is whether there is an agreement to arbitrate." (Cruise v. Kroger Co. (2015) 233 Cal.App.4th 390, 396, emphasis in original.)

Determining whether there is an agreement to arbitrate is a three-step process. "First, the moving party bears the burden of producing 'prima facie evidence of a written

agreement to arbitrate the controversy.”

(Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th

158, 165.) “The moving party ‘can meet

its initial burden by attaching to the [motion or] petition a copy of the

arbitration agreement purporting to bear the [opposing party's] signature.” (Ibid.) In the alternative, “the moving party can

meet its burden by setting forth the agreement's provisions in the

motion.” (Ibid.)

“If the moving party meets its initial prima facie

burden and the opposing party disputes the agreement, then in the second step,

the opposing party bears the burden of producing evidence to challenge the

authenticity of the agreement.” (Ibid.) “The opposing party can do this in several

ways.” (Ibid.) “For example, the opposing party may testify

under oath or declare under penalty of perjury that the party never saw or does

not remember seeing the agreement, or that the party never signed or does not

remember signing the agreement.” (Ibid.)

“If the opposing party meets its

burden of producing evidence, then in the third step, the moving party must

establish with admissible evidence a valid arbitration agreement between the

parties.” (Ibid.) “The

burden of proving the agreement by a preponderance of the evidence

remains with the moving party.” (Id. at

165-166.)

Exact Staff passes the first step. A copy of Exact Staff's arbitration agreement is physically included with the moving papers.

(See Smith Decl., Ex. A; see also Gamboa, supra, 72

Cal.App.5th at 165.)[1]

For the second step, Plaintiff declares:

4. My

attorney has informed me that Defendants claim I signed an arbitration

agreement on August 14, 2025. I recall working on August 14, 2025. I was not

presented with, did not review, and did not sign an arbitration agreement on

that date or at any other time during my employment with Defendants.

(Meraz Decl., ¶ 4.)

The second

step is satisfied. *Iyere v. Wise Auto*

Group (2023) 87 Cal.App.5th 747 instructs that an “individual’s inability to recall signing electronically may reasonably be regarded as evidence that the person did not do so.” (*Iyere*, supra, 87 Cal.App.5th at 757.)

Which brings the Court to the third step. Plaintiff challenges authentication. He claims “[t]here is no admissible evidence showing how the signature on the agreement was obtained or whether Plaintiff was the individual who signed the agreement.”

(Opposition, p. 3; see also *id.* at p. 4.)

“Authentication of a writing means (a) the introduction of evidence sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is or (b) the establishment of such facts by any other means provided by law.” (*Knight*, Cal.

Practice Guide: Alternative Dispute Resolution (The Rutter Group 2025) ¶ 5:321.1 [quoting Evidence Code section 1400].) “An ‘electronic signature is attributable to a person if it was the act of the person’ and this may be shown in any manner.” (*Id.* at ¶

5:321.3.) “[A] party may establish that the electronic signature was ‘the act of the person’ by presenting evidence that a unique login and password known only to that person was required to affix the electronic signature, along with evidence detailing the procedures the person had to follow to electronically sign the document and the accompanying security precautions.” (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 545.)

Given these rules, the original

Smith declaration filed by Defendants failed to establish existence of the agreement to arbitrate.

Smith’s April 23, 2026

declaration fails to show personal knowledge regarding Plaintiff’s specific e-signing and do not supply the requisite details about Exact Staff’s onboarding procedures. Simply put, Exact Staff’s evidence fails to “indicate whether or if so how [Exact Staff] ascertained that [Plaintiff] electronically signed, or was the person who electronically signed,” the agreement. (*Ruiz*, supra, 232 Cal.App.4th at 841.)

However, Mr. Smith's

declaration filed on August 12, 2026 with the Reply brief, provides more information. Ordinarily the court does not permit new evidence to be received as part of a reply. But given the three-step burden process for this matter, the court will consider it. Fairness dictates however, that the court permit Plaintiff to offer a memorandum and supplemental declaration in surreply. Plaintiff is invited to provide a memorandum of no more than five pages, and a declaration from Mr. Meraz on two topics: (1) Response to Mr. Smith's supplemental declaration regarding Mr. Meraz's consent to arbitration; (2) Specific details about Mr. Meraz's job duties in support of a claim that he was a transportation worker excepted from the Federal Arbitration Act. The court does not invite any further filings on this topic.

At the hearing, the court will discuss with counsel a hearing date and briefing schedule.

[1] The moving party "is not required to authenticate an opposing party's signature on an arbitration agreement as a preliminary matter" (Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 846, emphasis in original), and the reviewing court "is only required to make a finding of the agreement's existence, not an evidentiary determination of its validity." (Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 219.)